



ADMINISTRATIVE RULES OF MONTANA

37.78.420 TANF: ASSISTANCE STANDARDS; TABLES; METHODS OF COMPUTING AMOUNT OF MONTHLY BENEFIT PAYMENT

- (1) Income standards as set forth in this rule are used to determine whether need exists with respect to income for any person who applies for or receives TANF cash assistance or TANF cash assistance Post-Employment Program benefits and to determine the benefit amount the assistance unit will receive if eligible. Four sets of assistance standards are used which are as follows:
 - (a) The gross monthly income (GMI) standard sets the level of gross monthly income for each size assistance unit which cannot be exceeded if the assistance unit is to be eligible for TANF cash assistance.
 - (b) The net monthly income (NMI) standard is used to determine the GMI.
 - (c) The benefit standard sets the level of net countable income which cannot be exceeded if the assistance unit is to be eligible for assistance.
 - (d) The payment standard is used to determine the amount of the monthly cash payment in the TANF cash assistance program and is based on the size of the or TANF cash assistance Post-Employment Program benefits assistance unit, unless the household is receiving benefits through the TANF Cash Assistance Post-Employment Program. Payment standards in the Post-Employment Program are a set amount as defined in (4)(e). This amount is not based on household size. The household's net countable income is subtracted from the payment standard to determine the amount of the payment for the TANF case assistance unit. This amount is prorated for the month of application if eligibility is for less than a full month.
- (2) The income standards vary depending on the number of persons in the assistance unit.
- (3) The assistance unit's GMI as defined in ARM 37.78.103 is compared to the applicable GMI standard, and after specified disregards, to the benefit standard. If the assistance unit's GMI exceeds the GMI standard or their countable monthly income as defined in ARM 37.78.103 exceeds the benefit standard, the assistance unit is ineligible for assistance. Monthly income is compared to the full standard even if the eligibility is being determined for only part of the month.
 - (a) Eligibility for assistance and the amount of the monthly benefit payment which a TANF cash assistance unit will receive is determined prospectively, that is, based on the department's best estimate of income and other circumstances which will exist in the benefit month.
 - (b) When comparing income to the income standards, income anticipated to be received in the benefit month is used.
- (4) The GMI standards, NMI standards, and benefits standards are as follows:

- (a) Gross monthly income standards are compared with the assistance unit's gross monthly income as defined in ARM 37.78.406.

GROSS MONTHLY INCOME
STANDARDS (GMI)

Number of Persons in Household	Gross Monthly Income (GMI)
1	\$ 557
2	777
3	979
4	1,178
5	1,378
6	1,580
7	1,780
8	1,980
9	2,179
10	2,381
11	2,581
12	2,781
13	2,980
14	3,182
15	3,382
16	3,582
17	3,783
18	3,983
19	4,183
20	4,383

- (b) Net monthly income standards are used to compute gross monthly income standards (GMI).

NET
MONTHLY
INCOME
STANDARDS
(NMI)

1	\$ 312
2	420
3	529
4	637
5	745
6	854
7	962
8	1,070
9	1,178
10	1,287
11	1,395
12	1,503
13	1,611
14	1,720
15	1,828
16	1,936
17	2,045
18	2,153
19	2,261
20	2,369

- (c) Benefit standards are compared with the assistance unit's countable income as defined in ARM 37.78.406.

BENEFITS
STANDARDS

1	\$ 245
2	330
3	415
4	500
5	585
6	670
7	755
8	840
9	925
10	1,010
11	1,095
12	1,180
13	1,265
14	1,350
15	1,435
16	1,520
17	1,605
18	1,690
19	1,775

- (d) The payment standards for the TANF Cash Assistance Program are compared to the assistance unit's net countable income as defined in ARM 37.78.406.

PAYMENT STANDARDS
(33% of the FY 2007 Federal Poverty Level)

1	\$ 298
2	401
3	504
4	606
5	709
6	812
7	915
8	1,018
9	1,121
10	1,223
11	1,326
12	1,429
13	1,532
14	1,635
15	1,738
16	1,841
17	1,943
18	2,046
19	2,149
20	2,252

- (e) The payment standards for the TANF Cash Assistance Post-Employment Program are compared to the assistance unit's net countable income as defined in ARM 37.78.406 and are set at the following:

POST-
EMPLOYMENT
PAYMENT
STANDARDS

1st	\$ 37
Month	5
2nd	275
Month	
3rd	175
Month	

- (5) The adult's gross monthly earned income as defined in ARM 37.78.103 and ARM 37.78.406 is compared to the applicable GMI limit. If the assistance unit's GMI exceeds the GMI limit, the assistance unit is ineligible for assistance. Monthly income is compared to the full limit even if the eligibility is being determined for only part of the month. When comparing income to the income limits, income anticipated to be received in the benefit month is used.

Authorizing statute(s): 53-4-212, MCA

Implementing statute(s): 53-4-211, 53-4-241, 53-4-601, MCA

History: NEW, 1996 MAR p. 2194, Eff. 8/9/96; AMD, 1998 MAR p. 3284, Eff. 12/18/98; AMD, 2000 MAR p. 746, Eff. 3/17/00; TRANS, from SRS, 2000 MAR p. 3414; AMD, 2001 MAR p. 183, Eff. 1/26/01; AMD, 2002 MAR p. 1771, Eff. 6/28/02; AMD, 2003 p. 1645, Eff. 8/1/03; AMD, 2006 MAR p. 2415, Eff. 10/6/06; AMD, 2007 MAR p. 1818, Eff. 11/9/07; AMD, 2008 MAR p. 1154, Eff. 6/13/08; AMD, 2009 MAR p. 2380, Eff. 1/1/10; AMD, 2011 MAR p. 107, Eff. 1/28/11.